

HOUSE BILL NO. 38

INTRODUCED BY G. OBLANDER

BY REQUEST OF THE LOCAL GOVERNMENT INTERIM COMMITTEE

A BILL FOR AN ACT ENTITLED: "AN ACT GENERALLY REVISING LAWS RELATED TO DISABILITY PARKING; INCREASING FINES FOR VIOLATIONS; ESTABLISHING THAT A PERSON WHO PROVIDES FALSE INFORMATION OR ASSISTS AN UNQUALIFIED PERSON IN ACQUIRING CERTAIN DISABILITY PARKING ACCOMMODATIONS IS GUILTY OF A MISDEMEANOR; AND AMENDING SECTION 49-4-307, MCA."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Section 49-4-307, MCA, is amended to read:

"49-4-307. ~~Penalty~~ Penalties. (1) (a) ~~A~~ Except as provided in subsection (1)(b), a person who parks a motor vehicle or motorcycle in violation of 49-4-302(2) is ~~guilty of a misdemeanor and is punishable by a fine of \$100 or~~ (3) shall be fined:

(i) ~~_____~~ for a first violation, not less than \$150 or more than \$250; and

(ii) ~~_____~~ for a second or subsequent violation, not less than \$250 or more than \$500.

(b) ~~However, a~~ A person charged with violating who violates 49-4-302(2) or (3) may not be convicted ~~if within 3 business days the person produces in court or the office of the arresting officer a disability parking permit that was previously issued to the person and that is~~ was valid at the time of arrest ~~the parking violation.~~

(2) ~~If the operator was not with the vehicle at the time of the violation, the registered owner of the motor vehicle is personally responsible. A defense that the motor vehicle was parked in violation of 49-4-302(2) or (3) by a person other than the registered owner is not allowed unless it is shown that the motor vehicle was being used at the time without the consent of the registered owner.~~

(3)(2) A person who provides false information in order to acquire or who assists an unqualified person in acquiring a disability license plate issued under 61-3-458(4)(b) or (4)(i), a license plate displaying a

1 wheelchair as provided in 61-3-332(9), or a disability parking placard issued under this part or a person who
2 abuses the privileges granted by this part is guilty of a misdemeanor punishable by a fine of not less than \$300
3 or by community service not to exceed 10 hours dedicated to improving access for persons with disabilities, or
4 both.

5 ~~(4)~~(3) A sworn law enforcement official in the state or an officer who is authorized by a municipality
6 may enter any parking space, parking lot, or parking facility on the ways of this state open to the public as
7 defined in 61-8-101 or in a public right-of-way as defined in 60-1-103 to enforce the provisions of 49-4-302(2) or
8 (3) with respect to accessible parking for a person with a disability."

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